

STATE OF NEW YORK

1356--A

Cal. No. 9

2025-2026 Regular Sessions

IN SENATE

January 9, 2025

Introduced by Sens. SKOUFIS, RIVERA -- read twice and ordered printed, and when printed to be committed to the Committee on Elections -- committee discharged and said bill committed to the Committee on Rules -- reported favorably from said committee, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the election law and the vehicle and traffic law, in relation to joining multistate voter list maintenance organizations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Legislative findings and intent. As the official record of all eligible voters in a state, a state's voter registration rolls are the foundation of free, fair, and accurate elections. Illegal voting is exceedingly rare but maintaining accurate voter rolls reduces the opportunity for such behavior and it helps build confidence in election outcomes. However, keeping voter rolls up to date is a challenge because, every day, voters move or die. Voters do not always remember to update their registration when they move. These challenges are especially acute in states with large and highly mobile populations. Participation in a multistate voter list maintenance organization can improve the accuracy of New York's voter registration rolls. A multistate voter list maintenance organization is a coordinating entity between states that aids them in identifying voters who may no longer be eligible to vote, who have moved, or who have died. A voter list maintenance organization may also offer other information useful to improving voter registration or enhancing the integrity of election administration.

§ 2. Article 5 of the election law is amended by adding a new title 10 to read as follows:

TITLE X

MULTISTATE VOTER LIST MAINTENANCE ORGANIZATION MEMBERSHIP AUTHORIZATION

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD03193-07-5

Section 5-1000. Joining a multistate voter list maintenance organization.

5-1001. Designating a member representative.

5-1002. Authorization to share registration records with multistate voter list maintenance organization.

5-1003. Use of information from a multistate voter list maintenance organization.

5-1004. Withdrawal from a multistate voter list maintenance organization.

§ 5-1000. Joining a multistate voter list maintenance organization. The state board of elections shall join the state as a member in one or more multistate voter list maintenance organizations including, but not limited to, the electronic registration information center or its successor. The state board of elections shall expend funds for membership fees, dues and other expenses related to such membership.

§ 5-1001. Designating a member representative. The state board of elections shall designate the chief election official of the state of New York as the representative to the board of directors of any multistate voter list maintenance organization that the state is a member of including, but not limited to, the electronic registration information center or its successor.

§ 5-1002. Authorization to share registration records with multistate voter list maintenance organization. 1. Notwithstanding any other provision of law, the member representative designated under section 5-1001 of this title shall provide to the multistate voter list maintenance organization that they are a member of the following information from the statewide voter registration list as defined in section 5-614 of this article:

(a) all name fields;

(b) all address fields;

(c) date of birth;

(d) state voter identification number;

(e) voter's last registration date;

(f) activity dates as defined by the multistate voter list maintenance organization;

(g) voter history;

(h) DMV ID number; and

(i) last four digits of the voter's social security number.

2. The member representative designated under section 5-1001 of this title shall also provide any information to the multistate voter list maintenance organization provided to such member representative from the department of motor vehicles pursuant to section two hundred nineteen-a of the vehicle and traffic law.

3. The state board of elections shall not provide any information on any person in the confidential voter program pursuant to section 5-508 of this article for any purpose under this title. Nothing in this title shall be construed to require the department of motor vehicles to provide any information on any person in such program.

4. The state board of elections is authorized to promulgate any rule or regulation necessary to effectuate the provisions of this title.

§ 5-1003. Use of information from a multistate voter list maintenance organization. 1. Notwithstanding any provision of law to the contrary, the state board of elections shall use any information provided by a multistate voter list maintenance organization that the state has joined pursuant to section 5-1001 of this title, including but not limited to,

1 the use of such information in list maintenance activities performed
2 pursuant to section 5-614 of this article.

3 2. To avoid inadvertent or accidental registration of persons ineligi-
4 ble to register to vote, any mailing to any potentially eligible but
5 unregistered person shall state the voter registration criteria, includ-
6 ing but not limited to, any citizenship requirements.

7 § 5-1004. Withdrawal from a multistate voter list maintenance organ-
8 ization. Withdrawal of the state from a multistate voter list mainte-
9 nance organization shall require an affirmative vote of the state board
10 of elections commissioners pursuant to subdivision four of section 3-100
11 of this chapter.

12 § 3. The vehicle and traffic law is amended by adding a new section
13 219-a to read as follows:

14 § 219-a. State membership in a multistate voter list maintenance
15 organization. 1. Notwithstanding any other provision of law to the
16 contrary, the commissioner is authorized to provide to the state's
17 representative to a multistate voter list maintenance organization,
18 designated under section 5-1001 of the election law, the following
19 information: (a) all name fields; (b) all address fields; (c) DMV ID
20 number; (d) last four digits of the DMV ID holder's social security
21 number; (e) date of birth; (f) current record status; (g) phone number;
22 and (h) email address, provided that the conditions and terms of member-
23 ship are consistent with the provisions of this chapter and title ten of
24 article five of the election law pertaining to such membership or recip-
25 rocal recognition of vehicle registrations.

26 2. The commissioner shall not knowingly provide any information pursu-
27 ant to this section of persons who are not citizens.

28 § 4. New York state shall join a multistate voter list maintenance
29 organization promptly after the effective date of this act and shall
30 complete its registration with a multistate voter list maintenance
31 organization on or before July 31, 2026.

32 § 5. This act shall take effect immediately.